2362

Executive Order

MINIDOKA NATIONAL FOREST

IDAHO AND UTAH

Under authority of the Act of Congress approved June 4, 1897 (30 Stat., 11, 34–36), and on the recommendation of the Secretary of Agriculture, it is hereby ordered that the boundaries of the Minidoka National Forest, as modified by the proclamation of May 6, 1910, be further modified by excluding therefrom the following described lands, in the State of Idaho:

In T. 13 S., R. 28 E., S½ of Secs. 33, 34 and 35;

In T. 16 S., R. 28 E., Sec. 27;

In T. 16 S., R. 29 E., unsurveyed lands which by protraction of the lines of the public survey in said township would probably be Secs. 23 and 27 and S½ Sec. 28;

Unsurveyed lands which by protraction of the lines of the public survey in T. 13 S., R. 31 E., would probably be Sec. 1, E½ Sec. 12, NE¼ Sec. 13, T. 13 S., R. 30 E.;

In T. 13 S., R. 31 E., Secs. 17, 18, 19, 20, 29 and 30;

Boise Meridian.

It appearing proper and necessary, in the interest of equal opportunity and good administration, that all of such excluded lands subject to disposition should be restored to settlement in advance of entry, it is hereby ordered, pursuant to the authority reposed in me by the Act of September 30, 1913 (38 Stat., 113), that such lands, subject to valid rights and the provisions of existing withdrawals, shall be opened and become subject to settlement only, under the general provisions of the homestead laws, at and after, but not before, 9 o'clock a. m., standard time, on the sixty-third day after the date of this order; and to entry and other disposition, under any public land law applicable thereto, at and after, but not before, 9 o'clock a. m., standard time, on the ninety-first day after said date: Provided, that the rights of the State of Idaho under the provisions of the Act of March 3, 1893 (27 Stat., 592), shall not be abridged insofar as any of such lands are affected thereby. Unsurveyed lands are not subject to the provisions of said Act of March 3, 1893, but in the absence of a prior valid adverse right, the preference accorded the State of Idaho thereby, where the township has been surveyed and the plat thereof filed while the lands were reserved for forestry purposes, will attach immediately upon the restoration of such lands to selection and entry under the general land laws of the United States as herein provided and continue for sixty days.

Persons who go upon any of the lands to be restored as herein provided and perform any act of settlement thereon from and including the date of this order until 9 o'clock a. m., standard time, on the sixty-third day from and after the date hereof, or who are on or are occupying any part of such lands at said hour, except those having valid subsisting settlement rights initiated prior to reservation and since maintained, and those having preferences to make entry under the provisions of the Act of Congress approved June 11, 1906 (34 Stat., 233), entitled "An Act To provide

for the entry of Agricultural lands within forest reserves", and Acts amendatory, will be considered and dealt with as trespassers, and preference will be given the prior legal applicant, notwithstanding such unlawful settlement or occupancy: Provided, however, that nothing herein shall prevent persons from going upon and over the lands to examine them with a view thereafter to going upon and making settlement thereon when the lands shall become subject thereto in accordance with this order. Persons having prior settlement rights or preferences, as above defined, will be allowed to make entry in conformity with existing law and regulations.

WOODROW WILSON

THE WHITE HOUSE,
24 January, 1916.

[No. 2302.]